UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

MATERIA MUSIC, INC., a Washington corporation, Plaintiff, v. CHRISTOPHER DAVIDSON p/k/a DJ CUTMAN, an individual, and DOES 1 through 10, inclusive, Defendants.	No. 2:26-cv-3656 COMPLAINT FOR COPYRIGHT INFRINGEMENT JURY DEMAND

Plaintiff Materia Music Inc. brings this Complaint against Defendant Christopher Davidson p/k/a Dj Cutman and Does 1 through 10 and alleges as follows:

NATURE OF ACTION

1. This is an action for copyright infringement under 17 U.S.C. § 501, resulting from Defendant Christopher Davidson's decade-long unauthorized exploitation of musical works and sound recordings that Materia Music owns or has the rights to enforce.

2. Materia Music is a Seattle-based independent record label, music publisher, and rights administrator specializing in video game music. Chris Davidson knows this: He brags that he founded GameChops, a competing video game music label that holds itself out as "The

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World's Original Video Game Music Record Label."[1] He claims that, over time, GameChops has "grown into the world's most popular video game music label."[2]

3. Since Materia was founded in 2015, Davidson has created nearly 150 videos incorporating works by Materia artists without Materia or its artists' authorization or consent and uploaded those videos to his and GameChops' YouTube accounts for free. When Materia asked Davidson to license its artists' works for those videos, Davidson refused. And when Materia requested that YouTube remove the infringing videos due to Davidson's blatant and systematic copyright infringement, Davidson conceded to Materia that he lacked the necessary rights but asked YouTube to reinstate the videos anyway.

4. Materia brings this action to halt Davidson's ongoing and willful infringement of Materia's and its artists' registered copyrights.

JURISDICTION AND VENUE

5. This Court has subject matter jurisdiction over this action under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1338(a) (acts of Congress relating to copyrights and trademarks) because this action alleges violations of the Copyright Act, 17 U.S.C. § 101 et seq.

6. Venue is proper in this District under 28 U.S.C. § 1391(b) because a substantial part of the events or omissions giving rise to the claim occurred in this judicial district.

7. This Court has personal jurisdiction over Davidson because he regularly transacts business with Materia and others in this judicial district and recently sued Materia in this district for copyright infringement and violations of the Digital Millennium Copyright Act ("**DMCA**"), confirming Davidson's purposeful availment of and consent to litigate against Materia in this judicial district.

[1] "The World's Original Video Game Music Record Label," GameChops.com, http://www.gamechops.com (last accessed Sept. 26, 2026).

[2] "Our Story," GameChops.com, http://www.gamechops.com/story/ (last accessed Sept. 26, 2026).

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THE PARTIES

8. Plaintiff Materia Music, Inc. is an independent record company, music publisher, and music production company based in Seattle, Washington. It is one of the first and largest independent record companies to focus exclusively on video game music. It is now among the most well-known and largest sources of music and related merchandise in the video game music genre.

9. Defendant Christopher Davidson p/k/a DJ Cutman is an individual who lives in Philadelphia, Pennsylvania. Davidson is a video game music DJ, producer, and record label owner. Davidson formed GameChops, LLC, a competing video game record label. On information and belief, Davidson is the founder, owner, and sole operator and account holder of the YouTube channels @Dj Cutman[3] and @GameChops.[4] On information and belief, Davidson personally posted the videos on the Dj Cutman and GameChops YouTube channels, potentially in concert with the Doe Defendants.

GENERAL ALLEGATIONS

A. Materia Music's Rights in the Works at Issue

10. Materia owns one or more exclusive rights in the registered copyrights for the following musical compositions and sound recordings (the "**Materia Works**"):

Materia Work	Copyright Reg. No.	Eff. Reg. Date
A Town Called Hometown	PA0002164011	Feb. 4, 2019
Before the Story	PA0002164011	Feb. 4, 2019
CHAOS KING	PA0002164011	Feb. 4, 2019
Checker Dance	PA0002164011	Feb. 4, 2019
Don't Forget	PA0002164011	Feb. 4, 2019
Empty Town	PA0002164011	Feb. 4, 2019
Field of Hopes and Dreams	PA0002164011	Feb. 4, 2019

[3] The Dj Cutman YouTube channel is available online at https://www.youtube.com/DjCUTMAN.

[4] The GameChops YouTube channel is available online at https://www.youtube.com/channel/UCDVKYPXwdYUQfgA05CkyFSg

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Friendship	PA0002164011	Feb. 4, 2019
Hip Shop	PA0002164011	Feb. 4, 2019
Lancer	PA0002164011	Feb. 4, 2019
Quiet Autumn	PA0002164011	Feb. 4, 2019
Rouxls Kaard	PA0002164011	Feb. 4, 2019
Rude Buster	PA0002164011	Feb. 4, 2019
The Legend	PA0002164011	Feb. 4, 2019
The World Revolving	PA0002164011	Feb. 4, 2019
A Cyber's World?	PA0002553847	Oct. 8, 2025
Girl Next Door	PA0002553847	Oct. 8, 2025
Until Next Time	PA0002553849	Oct. 8, 2025
Attack of the Killer Queen	PA0002553850	Oct. 8, 2025
BIG SHOT	PA0002553850	Oct. 8, 2025
Lost Girl	PA0002553850	Oct. 8, 2025
Another Medium	SR0000784995	Apr. 24, 2017
Asgore	SR0000784995	Apr. 24, 2017
Battle Against a True Hero	SR0000784995	Apr. 24, 2017
Bonetrousle	SR0000784995	Apr. 24, 2017
Chill	SR0000784995	Apr. 24, 2017
Core	SR0000784995	Apr. 24, 2017
Dating Start	SR0000784995	Apr. 24, 2017
Death By Glamour	SR0000784995	Apr. 24, 2017
DogSong	SR0000784995	Apr. 24, 2017
Don't Give Up	SR0000784995	Apr. 24, 2017
Enemy Approaching	SR0000784995	Apr. 24, 2017
Fallen Down	SR0000784995	Apr. 24, 2017
Finale	SR0000784995	Apr. 24, 2017
Ghost Fight	SR0000784995	Apr. 24, 2017
His Theme	SR0000784995	Apr. 24, 2017
Home	SR0000784995	Apr. 24, 2017
Hopes and Dreams	SR0000784995	Apr. 24, 2017
It's Raining Somewhere Else	SR0000784995	Apr. 24, 2017
Last Goodbye	SR0000784995	Apr. 24, 2017
Megalovania	SR0000784995	Apr. 24, 2017
Metal Crusher	SR0000784995	Apr. 24, 2017
Once Upon a Time	SR0000784995	Apr. 24, 2017
Reunited	SR0000784995	Apr. 24, 2017
sans	SR0000784995	Apr. 24, 2017

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Shop	SR0000784995	Apr. 24, 2017
Snowdin Town	SR0000784995	Apr. 24, 2017
Song That Might Play When You Fight sans	SR0000784995	Apr. 24, 2017
Spear of Justice	SR0000784995	Apr. 24, 2017
Spider Dance	SR0000784995	Apr. 24, 2017
Spooktune	SR0000784995	Apr. 24, 2017
Tem Shop	SR0000784995	Apr. 24, 2017
Thundersnail	SR0000784995	Apr. 24, 2017
Undertale	SR0000784995	Apr. 24, 2017
Uwa!! So Temperate	SR0000784995	Apr. 24, 2017
Waterfall	SR0000784995	Apr. 24, 2017
Your Best Nightmare	SR0000784995	Apr. 24, 2017
First Steps	SR0000857367	Aug. 1, 2019
In the Mirror	SR0000857367	Aug. 1, 2019
Resurrections	SR0000857367	Aug. 1, 2019

11. Each of the Materia Works is an expressive and creative work and, as such, is at the core of copyright's protective purposes.

B. Defendant Davidson's YouTube Posts and Infringing Activities

12. Between approximately November 10, 2015, and March 25, 2026, Davidson (potentially in concert with the Doe Defendants) created and uploaded videos incorporating one or more of the Materia Works to the DjCutman YouTube and/or the GameChops YouTube channels (the "**Alleged Infringements**"). A complete list of the Alleged Infringements with the corresponding infringing URL and incorporated Materia Work is attached hereto as **Exhibit A**.

13. Each of the Alleged Infringements synchronized one or more Materia Works to video. Thus, by creating the Alleged Infringements, Davidson (potentially in concert with the Doe Defendants) prepared derivative works based on the synchronized Materia Work.

14. By uploading the Alleged Infringements to the Dj Cutman YouTube and/or GameChops YouTube channels, Davidson (potentially in concert with the Doe Defendants) reproduced, distributed, transmitted, or otherwise communicated to the public the Materia Works embodied in the Alleged Infringements by making them freely available to the public online.

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15. Neither Materia nor any person or entity acting on its behalf authorized or consented to Defendants' synchronization of any of the Materia Works to video, by issuing a synchronization (or "synch") license or otherwise. Nor did Materia or any person or entity acting on its behalf authorize or consent to the distribution, transmission, and/or communication of the Alleged Infringements on the Dj Cutman or GameChops YouTube channels, or anywhere else.

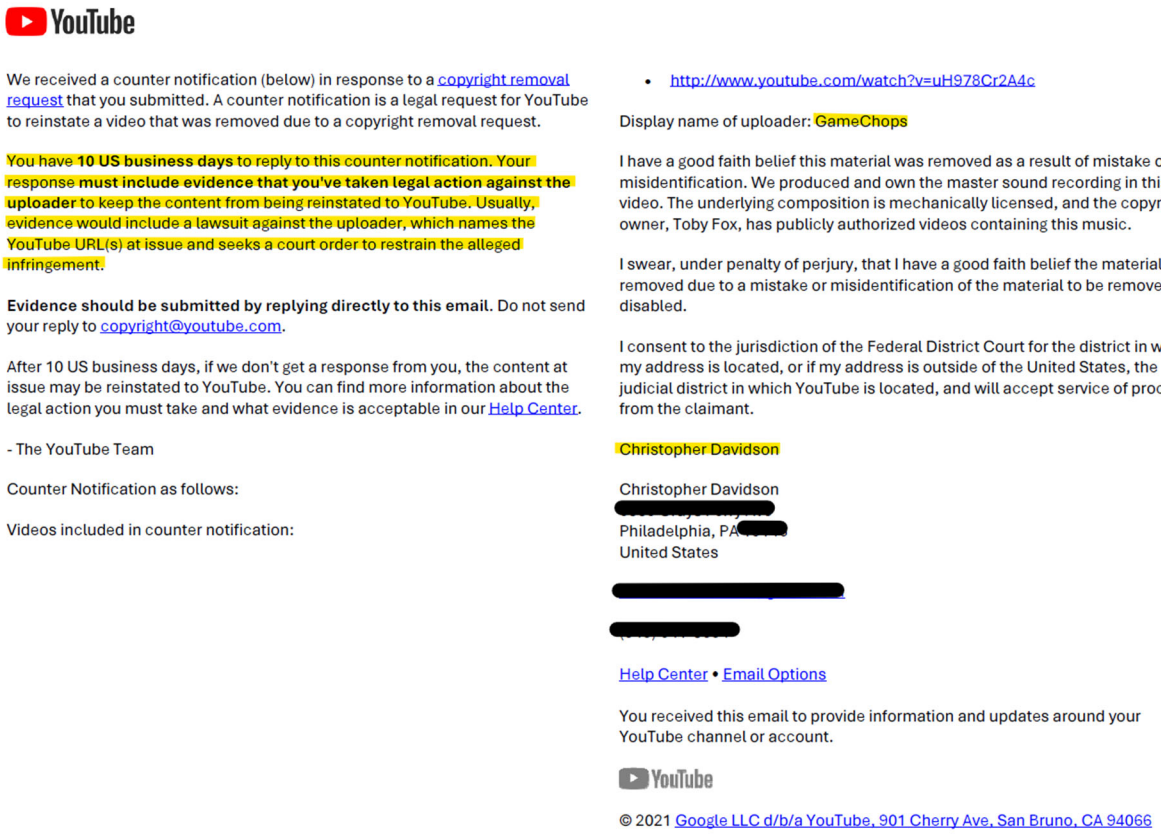
16. Materia submitted DMCA takedown notices (i.e., "copyright removal requests" under YouTube's Copyright and Rights Management Policy[5]) to YouTube for each of the Alleged Infringements, demanding that YouTube remove the Alleged Infringements. A complete list of the copyright removal requests that Materia submitted, along with the corresponding Google Ticket Number, Materia Works, and infringing URLs, is attached hereto as **Exhibit A**.

17. YouTube responded to Materia's copyright removal requests by removing the videos and giving notice to Davidson. After YouTube removed the Alleged Infringements, Davidson signed and submitted counter notifications (i.e., "disputes" under YouTube's policy) to each of the copyright removal requests Materia submitted. A complete list of the Google Ticket Numbers corresponding to Davidson's counter notifications is included in Exhibit A attached hereto.

18. Following its receipt of Davidson's counter notifications, YouTube informed Materia that it would repost each of the Alleged Infringements "[a]fter 10 US business days" unless a suit was filed seeking injunctive relief preventing Davidson's continued infringements. A representative example of one of these notices from YouTube is as follows:

[5] YouTube's Copyright and Rights Management Policy is available at https://support.google.com/youtube/answer/2807622?hl=en-GB.

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YouTube

We received a counter notification (below) in response to a copyright removal request that you submitted. A counter notification is a legal request for YouTube to reinstate a video that was removed due to a copyright removal request.

You have **10 US business days** to reply to this counter notification. Your response **must include evidence that you've taken legal action against the uploader** to keep the content from being reinstated to YouTube. Usually, evidence would include a lawsuit against the uploader, which names the YouTube URL(s) at issue and seeks a court order to restrain the alleged infringement.

Evidence should be submitted by replying directly to this email. Do not send your reply to copyright@youtube.com.

After 10 US business days, if we don't get a response from you, the content at issue may be reinstated to YouTube. You can find more information about the legal action you must take and what evidence is acceptable in our Help Center.

- The YouTube Team

Counter Notification as follows:

Videos included in counter notification:

- http://www.youtube.com/watch?v=uH978Cr2A4c

Display name of uploader: GameChops

I have a good faith belief this material was removed as a result of mistake or misidentification. We produced and own the master sound recording in this video. The underlying composition is mechanically licensed, and the copyright owner, Toby Fox, has publicly authorized videos containing this music.

I swear, under penalty of perjury, that I have a good faith belief the material was removed due to a mistake or misidentification of the material to be removed or disabled.

I consent to the jurisdiction of the Federal District Court for the district in which my address is located, or if my address is outside of the United States, the judicial district in which YouTube is located, and will accept service of process from the claimant.

Christopher Davidson

Christopher Davidson
[redacted]
Philadelphia, PA[redacted]
United States

[redacted]

[redacted]

Help Center • Email Options

You received this email to provide information and updates around your YouTube channel or account.

YouTube

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FIRST CAUSE OF ACTION

(Copyright Infringement, 17 U.S.C. §§ 106, 501)

(Against All Defendants)

19. Materia realleges and incorporates by reference the allegations of paragraphs 1 through 18 of this Complaint as if fully set forth herein.

20. Materia owns or is authorized to enforce the copyrights to each of the Materia Works, which are copyrightable works under the Copyright Act, 17 U.S.C. §§ 101 et seq.

21. The copyrights to each of the Materia Works have been registered with the United States Copyright Office and are valid, subsisting, and enforceable.

22. Defendants infringed the copyrights in the Materia Works by synchronizing the Materia Works to video without license, authorization, permission, or consent to do so, thereby

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violating Materia's right under 17 U.S.C. § 106(2) to prepare derivative works based on the Materia Works.

23. Defendants further infringed the copyrights in the Materia Works by copying, reproducing, distributing, and publishing all or substantial portions of the Materia Works in videos that Davidson posted on the Dj Cutman and GameChops YouTube channels (i.e., the Alleged Infringements, as set forth in Exhibit A attached hereto)—and possibly other platforms—without license, authorization, permission, or consent from Materia, in violation of the Copyright Act, 17 U.S.C. §§ 106, 501.

24. Defendants' acts of infringement were willful, intentional, and purposeful, and in blatant disregard of Materia's rights.

25. As a result of Defendants' willful copyright infringement, Materia has suffered damages in an amount to be established at trial.

26. As a direct and proximate result of Defendants' willful infringements, Materia is entitled to maximum statutory damages of $150,000 for each registered work infringed, or actual damages and Defendants' profits in amounts to be proven at trial, and/or such other amounts as may be proper under 17 U.S.C. § 504(c).

27. Materia is entitled to recover its attorney's fees and costs under 17 U.S.C. § 505.

28. Davidson objected to the removal of the Alleged Infringements from YouTube, refused to agree not to re-post those infringing works, and requested that YouTube reinstate the Alleged Infringements on the Dj Cutman and GameChops YouTube channels, respectively. *See. e.g.*, Ex. A (listing counter-notification ticket numbers in column C). As a result, Materia has suffered and will continue to suffer substantial, immediate, and irreparable injury, for which there is no adequate remedy at law. Unless enjoined by this Court, Defendants will continue to infringe Materia's rights in the Materia Works and in other works belonging to Materia. Materia is therefore entitled to injunctive relief to enjoin Defendants' ongoing and future infringement.

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PRAYER

WHEREFORE, Plaintiff Materia Music, Inc. requests that the Court enter judgment in its favor and against Defendant Christopher Davidson and Does 1–10, with an award of the following relief:

1. A temporary, preliminary, and permanent injunction enjoining Defendants, and any and all other persons and entities acting in concert with them, from reproducing or distributing the Materia Works (as embodied in the Alleged Infringements, or otherwise) or any other musical composition or sound recording for which Materia has the right to enforce;
2. An award of damages as permitted by 17 U.S.C. § 504(b) and (c) and other applicable law;
3. An award of Materia's costs, including reasonable attorney's fees, as permitted by 17 U.S.C. § 505.
4. An order directing impoundment or destruction of all copies of the Alleged Infringements, as permitted by 17 U.S.C. § 503(a)(1)(A); and
5. Any other relief that this Court deems just and proper.

Dated: September 28, 2026

By: s/ William C. Rava

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